

HEADNOTE

- “1. An absolute bar to proceedings within the meaning of Rule 362 RoP is a circumstance that excludes the conduct or continuation of proceedings (before the Court) on legal grounds, and does so finally. An absolute bar to proceedings is not at the disposal of the parties and cannot be remedied or cured by filing a subsequent written submission or by subsequent performance.*
- 2. For determining the res judicata effect of a decision of a national court, national law is decisive.*
- 3. A substantiated ("concrete", "specifically", "spécifiquement") denial within the meaning of Rule 171.2 RoP cannot be required when the fact put forward is one that lies outside the sphere of knowledge and responsibility of the party. If the fact put forward lies outside the sphere of knowledge and responsibility of the party, it is open to that party to declare that it has no knowledge of that fact. The fact is then not to be regarded as undisputed; rather, it requires proof.*
- 4. If the use of the technical teaching of a patent on the basis of a prior use right in a contracting member state is lawful, actions in that contracting member state cannot establish a threat of infringement with regard to the use of the patent in another contracting member state. The threat of infringement requires a finding of unlawful use of the patent.”*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3 215 288

SINTERED METAL PREPARATION
AND ITS USE FOR JOINING
COMPONENTS

KEYWORDS

Use claim

Res judicata of national invalidity judgment

Absolute procedural bar

Declaration with lack of knowledge

Inventive step

Prior use right

Rule 362 Absolute bar to proceeding with an action

SUMMARY

The Court of Appeal Luxembourg issued a procedural order concerning sintered metal preparation and its use for joining components. The patent at issue relates to sintered metal preparation and its use for joining components. According to the headnotes of the decision, an absolute bar to proceedings is a final legal circumstance that prevents court proceedings. This bar cannot be cured by later submissions or actions by the parties. Further, when determining res judicata effects, national law governs the outcome. Additionally, a party need not substantively deny facts outside its knowledge or responsibility. Instead, such a party may declare it lacks knowledge of those facts. In particular, the fact then requires proof and is not deemed admitted. Furthermore, if a prior use right permits lawful patent use in one member state, this cannot establish infringement threats in another member state. This is because threat of infringement requires unlawful use of the patent.